

1 AN ACT relating to utilization controls for nonopioid analgesics in the Medicaid
2 program.

3 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

4 ➔SECTION 1. A NEW SECTION OF KRS CHAPTER 205 IS CREATED TO
5 READ AS FOLLOWS:

6 ***The Department for Medicaid Services, any managed care organization with whom the***
7 ***department contracts for the delivery of Medicaid services, and the state pharmacy***
8 ***benefit manager contracted by the department pursuant to KRS 205.5512 shall not:***

9 ***(1) Deny coverage of a nonopioid prescription drug in favor of an opioid prescription***
10 ***drug when a licensed physician has prescribed a nonopioid medication for the***
11 ***treatment of chronic or acute pain; or***

12 ***(2) Establish more restrictive or more extensive utilization controls, including but not***
13 ***limited to more restrictive or more extensive prior authorization or step therapy***
14 ***requirements, for clinically appropriate nonopioid drugs than the least restrictive***
15 ***or extensive utilization controls applicable to any clinically appropriate opioid or***
16 ***narcotic drug.***

17 ➔Section 2. If the Cabinet for Health and Family Services or the Department for
18 Medicaid Services determines that a state plan amendment, waiver, or any other form of
19 authorization or approval from any federal agency to implement Section 1 of this Act is
20 necessary to prevent the loss of federal funds or to comply with federal law, the cabinet
21 or department:

22 (1) Shall, within 90 days after the effective date of this section, request the
23 necessary federal authorization or approval to implement Section 1 of this Act; and

24 (2) May only delay implementation of the provisions of Section 1 of this Act for
25 which federal authorization or approval was deemed necessary until the federal
26 authorization or approval is granted.

27 ➔Section 3. Sections 1 and 2 of this Act shall constitute the specific authorization

- 1 required under KRS 205.5372(1).